

10. 9:00 AM CASE NUMBER: C26-00316
CASE NAME: GARY DARTEZ VS. DOES 1 THROUGH 50, INCLUSIVE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY:

TENTATIVE RULING:

Defendants Walnut Creek Luxury Cars, LLC and Hudson Insurance Company (“Defendants”) filed a Demurrer on April 1, 2026 to the Complaint filed by plaintiff January 29, 2026 (the “Demurrer”). The Demurrer was set for hearing on August 17, 2026.

Background and Analysis

No opposition was filed. However, plaintiff filed a First Amended Complaint on July 28, 2026.

A party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike. Code Civ. Proc. § 472(a).

When the plaintiff files an amended complaint in response to a defendant’s demurrer before the hearing on the demurrer, that hearing should be taken off calendar because the amended complaint supersedes the complaint to which the demurrer was directed. *People ex rel. Strathmann v. Acacia Research Corp.* (2012) 210 Cal.App.4th 487, 506; see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.11.

Accordingly, the Court orders the Demurrer off-calendar as moot in light of the amended complaint.

Disposition

The Court finds and orders as follows:

1. The Demurrer is ordered OFF-CALENDAR as moot.
2. The Court shall issue the order after hearing.

11. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
HEARING IN RE: APPLICATION FOR ORDER TO SHOW CAUSE RE PRELIMINARY INJUNCTION
FILED BY: GUPTA, PRAVEEN

TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to September 28, 2026, 9:00 am, in Department 34.

12. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
HEARING ON DEMURRER TO:
FILED BY:
TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to September 28, 2026, 9:00 am, in Department 34.

13. 9:00 AM CASE NUMBER: C26-01077
CASE NAME: PRAVEEN GUPTA VS. DOES 1 THROUGH 20, INCLUSIVE
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF COMPLAINT
FILED BY:
TENTATIVE RULING:

This matter is **CONTINUED**, *sua sponte* by the Court, to September 28, 2026, 9:00 am, in Department 34.

14. 9:00 AM CASE NUMBER: MSC22-00134
CASE NAME: RODRIGUEZ VS. STRONG
HEARING ON DEMURRER TO: RE 1ST AMENDED CROSS COMPLAINT OF STRONG
FILED BY: MENDEZ, ALBERTO
TENTATIVE RULING:

Before the Court is a demurrer by cross-defendant Alberto Mendez to the first amended cross-complaint filed by cross-complainant Michelle Strong. The hearing on the demurrer is **CONTINUED to 9:00 a.m. on September 21, 2026** for supplemental briefing, as set forth below.

Background

This action involves disputes over the operation of a restaurant and brewery business in Martinez, now closed. In the main action in the currently operative first amended complaint, Plaintiff Juan Reynaldo Rodriguez has sued Michelle Strong, LaSalle Strong, and Rocksteady Brewery Co. On April 29, 2022, Michelle Strong and LaSalle Strong filed a cross-complaint against Juan Rodriguez. On December 23, 2025, Michelle Strong filed a first amended cross-complaint ("FACC") against Juan Rodriguez, R&A Restaurant Group, LLC ("R&A LLC"), and Alberto Mendez, erroneously named as Albert Mendez that is the subject of the current demurrer. The FACC alleges 12 causes of action. Albert Mendez has filed a general demurrer to certain of those causes of action.

Procedural Defects in the Notice of Demurrer and Opportunity for Supplemental Opposition to the Demurrer to the Eighth Cause of Action

The notice of demurrer states Mendez is making general demurrers to three causes of action: conversion (4th C/A), declaratory relief (10th C/A), and injunctive relief (12th C/A). (Not. of Dem. p. 2, ll. 10-15.) The "Demurrer" on the ensuing page, however, lists general demurrers to four causes of action, the three listed above plus a general demurrer to the eighth cause of action for intentional interference with prospective economic advantage. The memorandum in support of the demurrer